

Comitoli Responsa Moralia qq. 98-99

(LA/EN)

<i>Latin</i>	<i>English</i>
QVÆSTIO XCVIII.	QUESTION XCVIII.
1. COram amplissimo antistite, cum viro religioso ac concionatore, altercatio mihi fuit.	1. In the presence of a most eminent prelate, I had a dispute with a religious man and preacher.
Possétne Romanus Pontifex sibi deligere successorem: is pugnabat posse; ego contra, non posse: necnon illud addidi, vno excepto Victoria, Hispano Doctore, neminem alium, quòd scirem ipse, ausum esse dicere, quod ille concionator aiebat.	Whether the Roman Pontiff could choose for himself a successor: he contended that he could; I, on the contrary, that he could not: and I added this besides, that, with the single exception of Victoria, the Spanish Doctor, no one else, so far as I myself knew, had dared to say what that preacher was affirming.

<i>Latin</i>	<i>English</i>
Nobis igitur in hac controuersia satis esse deberet nomina efferri eorum; eorumdémque rationes adferre, qui, nos quod credimus, magna contentione defendunt. Ioannes de Turrecremata, qui in Concilio Florentino aduersus Græcos pro Latinis acerrimè pugnauit, l.2.c. 51.de Ecclesia, probat, translato Sacerdotio legali oportuisse formam etiam assumendę personæ ad Sacerdotium transferri. In Sacerdotio legali vim habebat successio originis & carnis: debebant enim Sacerdotes esse ex stirpe.Aaron.Exod.c.28. Decuit ergo, inquit Turrecremata, vt huiusmodi forma translato Sacerdotio transferretur in aliam, vt iam non per carnis originem, sed per electionem assumptio fieret personæ ad Pontificatum. Hæc est eius prima ratio.	In this controversy, therefore, it ought to be enough for us that the names of those men be brought forward, and to adduce the arguments of the same, who defend with great earnestness that which we believe. John de Turrecremata, who in the Council of Florence fought most fiercely for the Latins against the Greeks, in l.2.c. 51.de Ecclesia proves that, when the legal Priesthood was transferred, the form also of assuming a person to the Priesthood had to be transferred. In the legal Priesthood, succession of origin and of flesh held force: for the Priests had to be of the stock of Aaron, Exod.c.28. It was fitting, therefore, says Turrecremata, that, the Priesthood having been transferred, a form of this kind should be changed into another, so that the assumption of a person to the

<i>Latin</i>	<i>English</i>
	Pontificate should now take place not through origin of the flesh, but through election. This is his first argument.
Sumit secundam ex spiritualitate Sacerdotij Euangelici: cuius summus principatus non carni, sed vitæ & spiritui meritò debetur. Tertiam, ex vniuersitate Sacerdotij, quod ad omnes tribus & nationes pertinere potest, ac pertinet. Quartam, ex qualitate vitę & sanctimonia, quæ requiritur in maximo Sacerdote, quæ sanctitas minùs periclitatur, difficiliùsque perit, si Sacerdotium summum non origine, sed electione mandetur. Quintam, ex periculo fortuito, quod accidere posset, si successione originis Pontifex eligeretur. Sextam, ex vtilitate populi Christiani, cui Pontifex maximus præficitur. Septimam, ex ratione naturali: quia nullus videtur iustè præesse multitudini, nisi ex eius consensu: ita à Christo ait Ecclesiæ potestatem permissam esse sibi creandi Pontificis.	He takes the second from the spirituality of the Evangelical Priesthood: whose supreme principate is deservedly owed not to the flesh, but to life and to the spirit. The third, from the universality of the Priesthood, which can pertain, and does pertain, to all tribes and nations. The fourth, from the quality of life and the sanctity which is required in the greatest Priest — which sanctity is less imperiled, and perishes with greater difficulty, if the supreme Priesthood be committed not by origin, but by election. The fifth, from the fortuitous danger which could occur if the Pontiff were chosen by succession of origin. The sixth, from the utility of the Christian

<i>Latin</i>	<i>English</i>
	people, over whom the Supreme Pontiff is placed. The seventh, from natural reason: because no one seems justly to preside over a multitude except by its consent: thus, he says, the power of creating for herself a Pontiff was entrusted by Christ to the Church.
2. Vnde, subiungit Turrecremata, de iure naturali & quasi diuino videtur esse, quòd Papa non faciat sibi successorem, nec post mortem, nec post resignationẽ. & paulò post: sic ergo patet, quòd tam iuri diuino quàm naturali consonum videtur, quòd ex electione vniuersalis Ecclesiæ, vel illorum, ad quos de consensu vniuersalis Ecclesiæ translatũ est ius eligendi, sicut hodie sunt Cardinales, vt in c. in nomine Domini distin. 23. & 79. c.1. fiat Papa, siue assumatur summus Pontifex.	2. Whence, Turrecremata adds, it seems to be of natural and, as it were, divine law that the Pope should not make for himself a successor, neither after death nor after resignation. And a little after: thus, therefore, it is evident that it seems consonant with divine as well as natural law that the Pope be made, or the Supreme Pontiff be assumed, by the election of the universal Church, or of those to whom, by the consent of the universal Church, the right of electing has been transferred — as today are the Cardinals, as in c. in

<i>Latin</i>	<i>English</i>
	nomine Domini distin. 23. & 79. c.1.
Confirmat Turrecremata hanc ipsam sententiam Canone Anacleti, distin.79. electionem. Ad factum Petri, quem proditum est, Clementem sibi successorem instituisse, respondet, assentiente Ecclesia illum institutum esse. Nam ad consensum inquit cleri & populi consuevit antiquitus fieri electio dist.63.c.quanto, & c.plures. & ait Clementis institutionẽ per modum electionis fuisse, quamuis formam eiusmodi Ecclesia postea recusavit. Idem Turrecremata in c.transitus d.79. quærit: num Papa eligere sibi queat successorem, & præcisè negat, &, si id conaretur, nullam fore electionem. Ista, inquit, est conclusio, quam ponit Hugo & Glossa, & satis apertè colligitur 7.q.1. per totum. De Clemẽte verò substituto à Petro, respondet illud diuina inspiratione factum esse, nec ad consequentiam trahendum.	Turrecremata confirms this same opinion by the Canon of Anacletus, distin.79. electionem. To the deed of Peter — who, as has been handed down, appointed Clement his successor — he responds that he was appointed with the Church assenting. For, he says, election was of old accustomed to be made with the consent of the clergy and people, dist.63.c.quanto, & c.plures. And he says that the appointment of Clement was by way of election, although the Church afterwards refused a form of this kind. The same Turrecremata, in c.transitus d.79., asks whether the Pope can elect a successor for himself, and he absolutely denies it, and [holds] that, if he should attempt it, the election would be null. This, he says, is the conclusion which Hugo and

<i>Latin</i>	<i>English</i>
	the Gloss set down, and it is gathered clearly enough from 7.q.1. per totum. But concerning Clement, substituted by Peter, he responds that this was done by divine inspiration, and is not to be drawn into a precedent.
3. Valdensis in primo volumine aduersus errores Wicleff.1.2.art.3,c.30. docet, qua ratione potuerit Clemens Petro succedere, succedendi forma posteris haudquaquam concessa. Debuit enim veritas respondere figuræ: ergo sicut Aaron primus, & summus Sacerdos legalis significabat Petrum primum Pontificem Euangelicum; ita cùm viuo Aarone creatus est Pontifex eius filius Eleazarus, indicabatur idem faciendum esse in Christi Ecclesia: vt viuo primo Pontifice Christiano crearetur alter; qui fuit Clemēs: & quemadmodum reliqui legis Pontifices successere, atque introierunt, eo, qui antecedebat, mortuo, vel expulso, sic etiam singuli Pontifices legis Christi.	3. Waldensis, in the first volume against the errors of Wicleff.1.2.art.3,c.30., teaches in what way Clement could succeed Peter, the form of succeeding being by no means granted to posterity. For the truth had to correspond to the figure: therefore, just as Aaron, the first and highest legal Priest, signified Peter, the first Evangelical Pontiff; so, when, while Aaron was living, his son Eleazar was created Pontiff, it was indicated that the same was to be done in the Church of Christ: that, while the first Christian Pontiff was living, another should be created —

<i>Latin</i>	<i>English</i>
	who was Clement: and just as the remaining Pontiffs of the law succeeded and entered in when he who preceded had died or been expelled, so also the individual Pontiffs of the law of Christ.
Pugnant pro hac ipsa sententia Armachanus contra errores Armenorum, & Gulielmus Ocham, quos citant Almainus & Caietanus, illósque sequuntur. Almainus igitur in tractatu de auctoritate Ecclesiæ, probat, ius eligendi Romanum Pontificem, non in ipso sed in Ecclesia residere; non in ipso, neque tamquam eligente, neque tamquam statuente, à quibus & quo pacto eligi debeat.	For this same opinion contend Armachanus, against the errors of the Armenians, and William of Ockham, whom Almain and Cajetan cite, and whom they follow. Almain, therefore, in the treatise de auctoritate Ecclesiæ, proves that the right of electing the Roman Pontiff resides not in him but in the Church; not in him, neither as electing, nor as determining by whom and in what manner he ought to be elected.
In hoc secundo errat Almainus: nam vbi Ecclesia vis suum eligendi concessit huic vel illi generi personarum, potest Romanus Pontifex rationem præscribere, quemadmodum eligere debeant; & quod potest, etiam fecit sapientissimis ea de re	In this second point Almain errs: for where the Church has granted her right of electing to this or that class of persons, the Roman Pontiff can prescribe the

<i>Latin</i>	<i>English</i>
legibus constitutis. Illud autem Almaini & Ocham culpa vacat, quòd negant Papæ potestatem eligendi Papam: sic enim argumentatur Almainus. Quia fieri posset, vt Ecclesia eo mortuo maneret sine potestate eligendi: quam rationẽ inquit, tangit Gulielmus Ocham, in 3.par. dialogi tractatu 1.1.1.c.16. Diceret quispiam potestatem eligendi tam in ipso quàm in Ecclesia esse.	manner in which they ought to elect; and what he can do, he has also done, most wise laws having been established on that matter. But that point of Almain and Ockham is free from fault, in which they deny to the Pope the power of electing a Pope: for Almain argues thus. Because it could come to pass that the Church, when he was dead, would remain without the power of electing: which argument, he says, William of Ockham touches upon, in 3.par. dialogi tractatu 1.1.1.c. 16. Someone might say that the power of electing is as much in him as in the Church.
4. Argumentantur secundo loco. Quòd cùm sentiret Pontifex sibi mortem impendere, posset, siue ad illustrandum genus, siue ad familiæ ornamenta, & commoda augenda, siue ad propinquos locupletandos, alicui consanguineo tradere, seu, veriùs, prodere Pontificatum. Quæ ratio inuenta est ab Armachano 7.lib.qq. Armenorum c.19.	4. They argue in the second place. That, when the Pontiff perceived that death was hanging over him, he could — whether to render his lineage illustrious, or to increase the ornaments and advantages of his family, or to enrich his kinsmen —

<i>Latin</i>	<i>English</i>
collocata hic est à nobis. Possent item duo nefariis Simoniacisque pactionibus partiri inter se vices, ac tempora Pontificiæ potestatis gerendæ exclusis viris optimis & rei Christianæ vtilissimis.	hand over to some blood-relation, or, more truly, betray, the Pontificate. This argument was devised by Armachanus, 7.lib.qq. Armenorum c.19.; it has been placed here by us. Likewise, two men could, by nefarious and Simoniactal pacts, divide between themselves the turns and times of wielding the Pontifical power, the best men, and those most useful to the Christian cause, being excluded.
De Petro autem Clementem eligente respondet Almainus in eod.cap.columna extrema. Caietanus, in 1.tomo opuscul. tract.2. de auctoritate Papæ, & Concilij probat eamdem conclusionem: Potestatémque electiuam Papæ, scribit regulariter esse in Ecclesia Romana; cuius Papa est Episcopus: multis aliis hoc postremum non placet, vt non multo pòst intelligetur. & in resp. ad quartum argumentum, his loquitur verbis. Ad quartum dicitur, quòd propriè loquendo neutro modo est potestas electiua in	But concerning Peter electing Clement, Almain responds in eod.cap.columna extrema. Cajetan, in 1.tomo opuscul. tract.2. de auctoritate Papæ, & Concilij, proves the same conclusion: and the elective power of the Pope, he writes, is regularly in the Roman Church, of which the Pope is Bishop: this last does not please many others, as will be understood not much later.

<i>Latin</i>	<i>English</i>
Papa, sed quia potest determinare Electores, & modum eligendi.	And in resp. ad quantum argumentum he speaks in these words. To the fourth it is said that, properly speaking, the elective power is in the Pope in neither way, but because he can determine the Electors and the manner of electing.
Argumentum verò, quod è facto Petri ducitur, multis modis refellit. Vel quòd Spiritus sancti fecerit impulsu; vel propter potestatis excellentiam, quæ illius fuit propria; vel quia sit factum incertum: si quidem Linus & Cletus creduntur Romanam rexisse Ecclesiam vt veri Pontifices ante Clementem; quem nominatum aiūt à Petro successorem suum. Canonem verò, si Petrus, qui est Ioannis III. 8.q.1. hoc pacto interpretatur. Verba, inquit, illa Ioannis Papæ III. tamquam narratiua crediti facti accipienda sunt, & non vt auctorizantia factum, quod narratur. Propter quod auctoritate illa vtimur, vt valeat, quantum valere potest. Huiúsque sententiæ, de qua disceptamus, patronos citāt acutissimum Theologum Ocham & Armachanum.	But the argument which is drawn from the deed of Peter he refutes in many ways. Either that he did it by the impulse of the Holy Spirit; or on account of the excellence of power, which was proper to him; or because the deed is uncertain: since indeed Linus and Cletus are believed to have ruled the Roman Church as true Pontiffs before Clement, whom they say was named by Peter as his successor. But the canon si Petrus, which is of John III, 8.q.1., he interprets in this way. Those words, he says, of Pope John III are to be taken as narrating a

<i>Latin</i>	<i>English</i>
	believed deed, and not as authorizing the deed which is narrated. Wherefore we use that authority, that it may avail as much as it can avail. And as patrons of this opinion, about which we are disputing, he cites that most acute Theologian Ockham, and Armachanus.
5. Archidiaconus in c.Transitus. dist.79. scribit: Quamuis Papa potestatem dare possit aliis successores sibi eligendi, ipsum tamen potestate carere successorem sibi eligendi. In cap. autem. 8.q.1. si Petrus, dicit Petrum successorem nominasse & elegisse, quia tunc non erant clerici, qui eligere sibi possent Prælatum.	5. The Archdeacon, in c.Transitus. dist.79., writes: Although the Pope can give to others the power of electing successors for him, he himself nevertheless lacks the power of electing a successor for himself. But in the chapter, 8.q.1. si Petrus, he says that Peter named and elected a successor because at that time there were no clerics who could elect a Prelate for themselves.
Parum meo quidem animo considerata responsio. Quis enim credat, tot annis, quibus Petrus, & vniuersam, & Romanam gubernauit Ecclesiam, non fuisse & in Romana ciuitate & foris, clericos quàm plurimos? Panormitanus,	A response, to my mind at least, too little considered. For who would believe that, in so many years in which Peter governed both the universal and the Roman

<i>Latin</i>	<i>English</i>
in c.licet de vitanda, de electione, num.2. commentarij sui, sententiam hanc his verbis subscribit. Non tamen Papa potest eligere sibi successorem, vt no.Gloss. in c.Apostolica. §. His omnibus. 8.q.1. & sequitur Io.Andr. hic & Archidiac. in c.Transitus. 79.dist. & tenetur hoc dictum communiter per Doctores, & est ratio. Quia effectus huiusmodi electionis refertur ad tempus, quo non est futurus Papa. l.eum qui.ff.de iurisdictione omnium iudicum. Sed constitutio, quam facit super electione, admittitur, quia prouidet futuris scandalis; & in casu, quo alius præter eum prouidere non potest. Posset tamen Papa dare potestatem alicui Prælato eligendi sibi successorem, vt in cap. Petisti.7.q.1.& tunc fit electio auctoritate Papæ, non propria. Syluester, in verbo, Excommunicatio, nono, excommunicatione, 2. num. 3. Papa, inquit, non potest sibi eligere successorem, secundùm D. Anton. & rationem adfert ex Panormitano.	Church, there were not, both in the Roman city and outside it, very many clerics? Panormitanus, in c.licet de vitanda, de electione, num.2. of his commentary, subscribes to this opinion in these words. Nevertheless the Pope cannot elect a successor for himself, as the Gloss notes in c.Apostolica. §. His omnibus. 8.q.1., and Io.Andr. follows this here, and Archidiac. in c.Transitus. 79.dist., and this dictum is held commonly by the Doctors, and there is a reason. Because the effect of an election of this kind is referred to a time at which he will not be Pope. l.eum qui.ff.de iurisdictione omnium iudicum. But the constitution which he makes concerning the election is admitted, because it provides against future scandals; and in a case in which another besides him cannot provide. Nevertheless the Pope could

<i>Latin</i>	<i>English</i>
	give to some Prelate the power of electing a successor for him, as in cap. Petisti.7.q. 1., and then the election takes place by the authority of the Pope, not by his own. Sylvester, in verbo, Excommunicatio, nono, excommunicatione, 2. num. 3.: The Pope, he says, cannot elect for himself a successor, according to St. Antoninus; and he adduces the reason from Panormitanus.
6. Fatentur nihilominus Ocham & Almainus; cū Electores Romani Pontificis conuocari nō possent, alium sibi posse surrogare. Gerson, in tract. de potestate Ecclesiastica, consideratione vndecima, ostendit, in Ecclesia & in generali Concilio esse plenitudinem potestatis Ecclesiasticæ, quoad applicationem ad hanc vel illam personam, & in hoc non esse difficultatem.	6. Ockham and Almain nevertheless confess that, when the Electors of the Roman Pontiff could not be convoked, he could substitute another in his own place. Gerson, in tract. de potestate Ecclesiastica, consideratione vndecima, shows that in the Church and in a general Council there is the plenitude of Ecclesiastical power, as regards its application to this or that person, and that in this there is no difficulty.

<i>Latin</i>	<i>English</i>
Scio esse nonnullos, qui existimât, Cardinalibus extinctis, ius eligendi Pontif. Max. ad Romanum clerum remigrare; quòd ille sit verus Episcopus Romæ, suâque Ecclesia parochialis sit Ecclesia sancti Ioan.Lateranensis. Verùm August.Anconitanus, cuius opinionem sequitur Diuus Antoninus, in 3.p.tit.21.c. 2.§.6. probat multo tutius eo tempore futurum, si generale Concilium cogatur ad cuncta, quę oriri possent, incommoda tollenda. Quocirca in tali casu inquit S.Ant. Imperator, & alij Reges & Principes Christianorum possent, & deberent, Concilium Episcoporum cõgregare ad huiusmodi electionem faciendam. Nec obstat, quòd Concilium generale congregari non potest nisi auctoritate Papæ, vt habetur dist.7. per totum, quia hoc est verum ipso viuête, secus ipso mortuo, & collegio Cardinalium deficiente. Hactenus D.Anton.	I know that there are some who think that, if the Cardinals were extinct, the right of electing the Supreme Pontiff would return to the Roman clergy; because he is the true Bishop of Rome, and his parochial Church is the Church of St. John Lateran. But Augustinus of Ancona, whose opinion St. Antoninus follows, in 3.p.tit.21.c.2.§.6., proves that it would at that time be much safer if a general Council were gathered to remove all the inconveniences that could arise. Wherefore, in such a case, says St. Antoninus, the Emperor, and the other Kings and Princes of Christians, could, and ought to, gather a Council of Bishops to carry out an election of this kind. Nor does it stand in the way that a general Council cannot be gathered except by the authority of the Pope, as is held dist.7. per totum,

<i>Latin</i>	<i>English</i>
	because this is true while he is living, otherwise when he is dead and the college of Cardinals is lacking. Thus far St. Antoninus.
Sanè mihi magno est argumento non posse Pont. Maximum alium sibi sufficere; quia post Petrum numquam id à quoquam est factum; factum verò esset, si fieri potuisset: cùm certum sit non semper optimæ frugis homines in illa Pontificia ac sanctissima sella sessitauisse.	Truly, for me it is a great argument that the Supreme Pontiff cannot put another in his own place, that after Peter this was never done by anyone; but it would have been done, if it could have been done: since it is certain that men of the best character have not always sat in that Pontifical and most holy chair.
Canoni igitur Anacleti, dist.79. extremo credamus. Electionem, inquit, summorum Sacerdotum sibi Dominus reseruauit: licèt electionem eorum bonis Sacerdotibus, & spiritualibus populis concessisset.	Let us therefore believe the Canon of Anacletus, dist.79. at the end. The Lord, it says, reserved to Himself the election of the highest Priests: although He had granted their election to good Priests and to spiritual peoples.
<i>Romanum Pontificem qui hoc alióue tempore multitudinem regit fidelium, fide</i>	<i>Whether it must be believed by divine and Catholic faith, or not, that the Roman</i>

<i>Latin</i>	<i>English</i>
<i>an ne diuina & Catholica credi oporteat legitimum esse Christi Vicarium.</i>	<i>Pontiff who at this or at another time rules the multitude of the faithful is the legitimate Vicar of Christ.</i>
QVÆSTIO XCIX.	QUESTION XCIX.
1. INCerta mihi ratio consilij fuit, ab reliquis huius primi voluminis quæstionibus deberémne hanc, quam nunc paro, secludere, an potiùs in eas, quæ Romani Pontificis potestatem attingunt, includere. Sed illud magis cõsultum fuit, includere.	1. My plan of counsel was uncertain, whether I ought to set apart this question, which I am now preparing, from the remaining questions of this first volume, or rather to include it among those which touch upon the power of the Roman Pontiff. But the more advisable course was this: to include it.
Cùm igitur nec semel, nec iterum, sed crebrò à multis hac quæstione exagitatus sim; num vniuersitati Christianorum, cui præest nunc hic, aliàs alius Romanus Pontifex, necessitatem impositam esse censerem diuina & Catholica fide credendi, illum ipsum verum & legitimum esse Christi Vicarium, quæstionem Theologicam atque arduam minimè abiiciendam putauì: cui pertractandæ eiusmodi operam dabo: vt primùm quid ipse, & cur sentiam, quam	Since, therefore, not once, nor twice, but frequently I have been pressed by many with this question — whether I judged that upon the whole community of Christians, over which now this Roman Pontiff, at other times another, presides, there has been imposed the necessity of believing by divine and Catholic faith that

<i>Latin</i>	<i>English</i>
breuissimè; deinde, iis quæ dici possunt contrà, pari breuitate respondeam.	this very man is the true and legitimate Vicar of Christ — I thought that this Theological and arduous question was by no means to be cast aside: and to its thorough treatment I shall devote my effort in this manner: that first I may state, as briefly as possible, what I myself hold, and why; then, that I may answer, with equal brevity, the things which can be said against it.
2. Hæc mihi igitur multos abhinc annos sententia firma insedit: Pontificem Romanum ab iis delectum, quibus ius est eligendi, & quem est Christiana complexa Ecclesia, verissimum Christi esse Vicarium: idque ea fide, cui nullum potest subesse falsum, ab vnoquoque credi oportere.	2. This opinion, therefore, has for many years now been firmly settled in my mind: that the Roman Pontiff, chosen by those to whom belongs the right of electing, and whom the Christian Church has embraced, is the most true Vicar of Christ: and that this must be believed by each and every one by that faith which can admit nothing false beneath it.
Huius constantis persuasionis hæ possunt esse præcipuæ rationes. Prima.	Of this constant persuasion, these can be the principal

<i>Latin</i>	<i>English</i>
Quia contra ac nos credimus, opinanti necesse est cunctas religionis nostræ, ac fidei nutare rationes, atque vniuersa misceri; id quod rationes, quæ consequentur, planum facient.	reasons. The first. Because, for one who opines contrary to what we believe, it is necessary that all the grounds of our religion and of the faith totter, and that all things be thrown into confusion — which the reasons that follow will make plain.
Sit igitur secunda ratio. Fidei Catholicæ articulus est, Ecclesiam esse vnam, Catholicam & visibilem: ergo eiusdem fidei articulus esse debet, caput esse vnum, vniuersale & visibile: at hoc non est nisi hic illéve Pontifex: quandoquidem Pontifex, qui cogitatione ab hoc illóve abiungitur, non extat in rerum natura; nec oculis cernitur; nec quidquam agit, molitúrve in Ecclesia à Christo instituta: ergo fide Catholica cogimur credere, hunc vel illum, qui Christianæ multitudini præficitur, verum & legitimum esse Pontificem.	Let this, then, be the second reason. It is an article of the Catholic faith that the Church is one, Catholic, and visible: therefore it must be an article of the same faith that her head is one, universal, and visible: but this is none other than this or that Pontiff: since a Pontiff who is separated in thought from this or that one does not exist in the nature of things; nor is he discerned by the eyes; nor does he do or undertake anything in the Church instituted by Christ: therefore by the Catholic faith we are compelled to believe that this or that man,

<i>Latin</i>	<i>English</i>
	who is set over the Christian multitude, is the true and legitimate Pontiff.
Tertia. Veram & legitimam successionem Pontificum in Romana Ecclesia & cathedra, fide Catholica, nedum humana, credimus: Verum ea successio constat ex his illisve, qui delecti sunt, Pontificibus, & qui Ecclesiam rexerunt: ergo singulos hosce credere debemus, fide, quæ omnem repellit falsi suspicionem, veros ac legitimos fuisse Pontifices.	The third. We believe the true and legitimate succession of the Pontiffs in the Roman Church and chair by Catholic faith, not merely human: But that succession is composed of these or those Pontiffs who were chosen, and who have ruled the Church: therefore we must believe, by a faith which repels every suspicion of falsehood, that each one of these was a true and legitimate Pontiff.
Quarta. Oecumenicorum Conciliorum auctoritatem, & canones fidei ab iis traditos diuina infusaque fide amplectimur: ergo eadem fide auctoritatem huius illiusve Pontificis Romani colere debemus; sine quo nec vllum Conciliū potest esse legitimum; neque eius legibus & sanctionibus alligatur Ecclesia antequam à Romano Pontifice confirmetur: conuocat autem Concilium, & illud confirmat, Syluester, Agapitus, Leo, Pius, Paulus: ergo hos	The fourth. We embrace with divine and infused faith the authority of the Ecumenical Councils and the canons of faith handed down by them: therefore by the same faith we must reverence the authority of this or that Roman Pontiff; without whom no Council can be legitimate; nor is the Church bound by its laws and

<i>Latin</i>	<i>English</i>
veros & legitimos esse Pontifices, certa & Catholica fide credi debet.	sanctions before it is confirmed by the Roman Pontiff: but he who convokes the Council, and confirms it, is Sylvester, Agapitus, Leo, Pius, Paul: therefore it must be believed by certain and Catholic faith that these are true and legitimate Pontiffs.
Quinta. Si è cathedra respondens Romanus Pontifex decernat aliquid ad fidem Catholicam pertinens, illi decreto cunctus Christianus populus fide Catholica assentiri cogitur: ergo illa ipsa fide necessarium est credere in Pontifice, qui auctor fuit decreti, legitimam fuisse potestatem decernendi. At qui decernit, est Petrus, Paulus, Stephanus, Clemens: Ergo hos vera, & legitima, & Pontificia auctoritate pollere fide Catholica debet esse perceptum.	The fifth. If the Roman Pontiff, responding from the chair, should decree something pertaining to the Catholic faith, the whole Christian people is compelled to assent to that decree by Catholic faith: therefore by that same faith it is necessary to believe that in the Pontiff who was the author of the decree there was a legitimate power of decreeing. But he who decrees is Peter, Paul, Stephen, Clement: Therefore, that these men are strong in true, and legitimate, and Pontifical authority must be grasped by the Catholic faith.

<i>Latin</i>	<i>English</i>
3. Sexta. In cultu Sacramentorum, vniuersam Ecclesiam errare nefarium est suspicari: ergo cū Romanus Pontifex toti fidelium cœtui sanctum quempiam colendum proponit, & præcipit, in ea re falli, aut fallere, ipse non potest: quia in necessaria cultus ratione errorem Christiano populo obiicere non potest. Sed cū quempiam in diuorum numerum refert, & à multitudine Christiana adorari imperat, id facit tamquam verus & legitimus Christi vicarius: Ergo eum talem esse Catholicè affirmare debemus.	3. The sixth. It is nefarious to suspect that the universal Church errs in the worship of the Sacraments: therefore, when the Roman Pontiff proposes, and commands, some saint to be venerated by the whole assembly of the faithful, he himself cannot in that matter be deceived, or deceive: because he cannot cast error before the Christian people in a necessary matter of worship. But when he enrolls someone among the saints, and commands him to be adored by the Christian multitude, he does this as the true and legitimate vicar of Christ: Therefore we must affirm in a Catholic manner that he is such.
Septima. Qui in Britannia pro tuenda Gregorij XIII. Pontificia auctoritate mortem oppetiuerunt, martyrum gloriã perinde sunt assecuti, vt si pro fide Catholica sanguinem profudissent: neque sacri illi & fortissimi viri verebantur, quo tempore pro Gregorij	The seventh. Those who in Britain met death for the defense of the Pontifical authority of Gregory XIII attained the glory of martyrs just as if they had poured forth their blood for the

<i>Latin</i>	<i>English</i>
XIII. Pontificia auctoritate dimicabant, quin pro fidei caussa decertarent.	Catholic faith: nor did those holy and most valiant men doubt, at the time when they were fighting for the Pontifical authority of Gregory XIII, that they were contending for the cause of the faith.
Octaua. Romanam cathedram interpretem religionis, magistram sacrorum ac morum esse incorruptam fide Catholica credimus: at nulla est Romana cathedra nisi quam hic illève Pontifex tenet quem sibi deligit Ecclesia: non is qui nusquam fuit, vel futurus est in terris: ergo hunc vel illum verum & legitimum eiusdem cathedræ antistitem esse fide, quæ errare non potest, credere debemus. Huic octauo argumento magnam auctoritatem tribuunt ea verba in fidei professione edita à Pio IV. <i>Sanctam Catholicam & Apostolicam Romanam Ecclesiam omnium Ecclesiarū matrē & magistrā agnosco.</i> At Romanæ Ecclesiæ moderator & magister est Anicetus, Innocentius, Clemens: Hos ergo veros fidei & doctrinæ magistros Catholica fide debemus agnoscere.	The eighth. We believe by Catholic faith that the Roman chair is the interpreter of religion, the incorrupt mistress of sacred things and of morals: but there is no Roman chair except that which this or that Pontiff holds, whom the Church chooses for herself: not one who has never existed, nor ever will exist, on earth: therefore we must believe, by a faith which cannot err, that this or that man is the true and legitimate prelate of that same chair. To this eighth argument great authority is given by those words in the profession of faith published by Pius IV: <i>I acknowledge</i>

<i>Latin</i>	<i>English</i>
	<i>the holy Catholic and Apostolic Roman Church as the mother and mistress of all Churches.</i> But the moderator and master of the Roman Church is Anicetus, Innocent, Clement: These men, therefore, we must acknowledge by Catholic faith as true masters of faith and doctrine.
Nona ratio. Christus Ecclesiasticam instituit monarchiã; quæ totã consequentem mundi ætatẽ est æquatura. Ergo cùm sine monarcha monarchia esse nõ possit, diuinæ fidei est credere numquã verũ illi defuturum monarcham: hic autem alius fingi non potest nisi Petri successor, qui legitimo assensu, aut Ecclesiæ, aut eorum, ad quos spectat, eligitur: ergo hunc, seu illum electum Pontificem Romanum, verum & legitimum huius sacræ monarchiæ caput, & Rectorem esse credere cogimur.	The ninth reason. Christ instituted an Ecclesiastical monarchy, which is to be coextensive with the whole succeeding age of the world. Therefore, since a monarchy cannot exist without a monarch, it belongs to divine faith to believe that a true monarch will never be lacking to it: but this monarch cannot be imagined to be any other than the successor of Peter, who is elected by the legitimate assent either of the Church, or of those to whom it pertains: therefore we are compelled to believe that

<i>Latin</i>	<i>English</i>
	this, or that, elected Roman Pontiff is the true and legitimate head and Ruler of this sacred monarchy.
Decima. Docet fides Catholica, Christianam Ecclesiam esse veram & legitimā Ecclesiam: ergo eadem docet, Romanum Pontificem, hunc vel illum, esse verum & legitimum Christi vicarium: propterea quòd is vniuersitatis Christianorum fons est, & proseminator: quādoquidem ab eo creantur Episcopi, ab his sacerdotes, ab sacerdotibus reliqui Christiani; vt, qui dubitat de veritate Pontificatus Petri, Pauli, Bonifacij, Clementis, eumdem de veritate Ecclesiæ dubitare necesse sit.	The tenth. The Catholic faith teaches that the Christian Church is the true and legitimate Church: therefore the same faith teaches that the Roman Pontiff, this one or that, is the true and legitimate vicar of Christ: for the reason that he is the fount and disseminator of the whole community of Christians: since by him Bishops are created, by these priests, and by the priests the rest of Christians; so that he who doubts of the truth of the Pontificate of Peter, Paul, Boniface, Clement must needs doubt likewise of the truth of the Church.
Vndecima. Fidei Catholicæ dogma est Ecclesiasticam Hierarchiā esse diuinitus constitutam: sic enim in Concil.Trident. sess.23.can.6. Si quis dixerit in Ecclesia Catholica non esse Hierarchiam diuina ordinatione institutam, quę constat ex	The eleventh. It is a dogma of the Catholic faith that the Ecclesiastical Hierarchy has been divinely constituted: for thus in Concil.Trident. sess. 23.can.6.: If anyone shall say

<i>Latin</i>	<i>English</i>
Episcopis, presbyteris, & ministris, anathema sit: sed præcipua pars huius Hierarchiæ est Romanus Põtifex caput illius, & Rector visibilis. Ergo sicut Hierarchiam diuina fide iubemur credere esse veram; sic eius caput esse verum: caput autem hoc est; hic seu ille Pontifex, quem oculis & digito notare possumus: quare, &c.	that in the Catholic Church there is not a Hierarchy instituted by divine ordination, which consists of Bishops, priests, and ministers, let him be anathema: but the principal part of this Hierarchy is the Roman Pontiff, its head and visible Ruler. Therefore, just as we are commanded to believe by divine faith that the Hierarchy is true, so also that its head is true: but this head is this or that Pontiff, whom we can mark out with our eyes and finger: wherefore, etc.
Duodecima. Est item fidei Catholicæ dogma, Episcopos assumptos à Romano Pontifice, esse legitimos & veros Episcopos: ergo Pontificẽ, cuius auctoritate assumuntur, fide Catholica fatendum est esse legitimum & verum Pontificem. Antecedẽs huius enthymematis est Concilij Tridentini, sess.23.can.8. his verbis decernentis. Si quis dixerit, Episcopos, qui auctoritate Romani Pontificis assumuntur, nõ esse legitimos & veros Episcopos, sed	The twelfth. It is likewise a dogma of the Catholic faith that Bishops assumed by the Roman Pontiff are legitimate and true Bishops: therefore it must be confessed by Catholic faith that the Pontiff, by whose authority they are assumed, is a legitimate and true Pontiff. The antecedent of this enthymeme is that of the

<i>Latin</i>	<i>English</i>
figmentum humanum, anathema sit. Ergo Clementem, Pium, Gregorium, quorum auctoritate eliguntur Episcopi, veritate Catholicæ fidei cogente dicendum est esse legitimos & veros Pontifices.	Council of Trent, sess. 23.can.8., decreeing in these words. If anyone shall say that the Bishops who are assumed by the authority of the Roman Pontiff are not legitimate and true Bishops, but a human contrivance, let him be anathema. Therefore, the truth of the Catholic faith compelling, it must be said that Clement, Pius, Gregory, by whose authority Bishops are elected, are legitimate and true Pontiffs.
Decimatertia. Qui sacrarum sanctionum aut Innocentij III. aut Alex. III. aut Gregor. IX. aut Bonifacij VIII. aut cæterorum Pontificum, quibus sanctionibus in Ecclesia iudicia exercentur, auctoritatem aut infringeret, aut inficiaretur, pœnis hæreticorum flecteretur: ergo fide Catholica, eorum à quibus profectæ sunt, veram & legitimam, & Pontificiam fuisse auctoritatem, credere necesse est.	The thirteenth. Whoever should either infringe or deny the authority of the sacred sanctions, whether of Innocent III, or of Alexander III, or of Gregory IX, or of Boniface VIII, or of the other Pontiffs — by which sanctions judgments are exercised in the Church — would be constrained by the penalties of heretics: therefore it is necessary to believe by Catholic faith that the authority of those from

<i>Latin</i>	<i>English</i>
	whom they proceeded was true, and legitimate, and Pontifical.
Confirmatur hoc ipsum argumentum ex constitutione Pauli IV. edita contra ambientes Papatum, & contra tractantes de futuro Pontifice eligendo, viuentē alio: nam decernit in eum, qui dixerit, quę ab eo in sua constitutione decreta sunt, aut illicita, aut iniqua esse, aut eundem non potuisse, vel debuisse facere, quę fecit, tamquam verum schismaticum & hereticum puniri & damnari posse.	This same argument is confirmed from the constitution of Paul IV published against those who canvass for the Papacy, and against those who treat of the election of a future Pontiff while another is living: for he decrees that he who shall have said that the things which were decreed by him in his constitution are either illicit or iniquitous, or that he could not, or ought not, to have done what he did, can be punished and condemned as a true schismatic and heretic.
Postrema ratio. Qui Clementem VIII. cui Catholica paret Ecclesia, aut caput Ecclesię, aut verum Petri successorem, aut Christi vicarium pernegaret, non in humanam, sed in fidem orthodoxam, & cui non potest subesse falsum, peccaret, & tamquam verus hæreticus flammis cremaretur: ergo ad fidem infusam diuinitus pertinet Clementem VIII. ab	The last reason. Whoever should utterly deny that Clement VIII, whom the Catholic Church obeys, is either the head of the Church, or the true successor of Peter, or the vicar of Christ, would sin not against human faith, but against the

<i>Latin</i>	<i>English</i>
vnoquoque Christiano verum, legitimumque Christi vicarium prædicari.	orthodox faith, which can admit nothing false beneath it, and would be burned in the flames as a true heretic: therefore it pertains to the divinely infused faith that Clement VIII be proclaimed by each and every Christian the true and legitimate vicar of Christ.
4. Restat vt contrariæ opinionis fundamenta subducamus. Primùm, verę sententiæ potest opponi, quòd salua fide Catholica quis de quocumque priuato sacerdote ambigere potest, sit nécne verus & legitimus sacerdos: cur ergo sine crimine hæreseως non fas erit pariter de hoc Romano Pontifice ambigere?	4. It remains for us to draw away the foundations of the contrary opinion. First, against the true opinion it can be objected that, with the Catholic faith intact, one may be in doubt concerning any private priest whatsoever, whether or not he be a true and legitimate priest: why, then, will it not be equally lawful, without the crime of heresy, to be in doubt concerning this Roman Pontiff?
Respondeo: quia cum Romani Pontificis potestate implicita sunt multa, quæ Catholica fide tenenda sunt: vt quòd in eo potestas resideat conuocandi & confirmandi Concilia: fidei	I respond: because with the power of the Roman Pontiff many things are bound up which must be held by the Catholic faith: as, that in him

<i>Latin</i>	<i>English</i>
controuersias dirimendi: viros pios & religiosos post obitum in diuorum numerum referēdi: Episcopos creandi, Reges & Imperatores, quando oportet, regno atque imperio abdicandi: Ecclesiam vniuersam regendi, atque ei salutares leges imponendi: quorum cū nihil cadat in priuatum sacerdotem, eum qui dubitat sacerdotem esse, culpam hæreseως non contrahit.	resides the power of convoking and confirming Councils; of settling controversies of faith; of enrolling pious and religious men, after their death, among the saints; of creating Bishops; of removing Kings and Emperors, when it is necessary, from kingdom and empire; of ruling the universal Church, and of imposing salutary laws upon her: and since none of these falls upon a private priest, he who doubts that such a man is a priest does not contract the guilt of heresy.
Addunt arguti opinatores. Atqui nemini fides Catholica, necessitatem imponit credendi Romanum Pontificem baptizatum esse: at sine baptismo non potest esse verus ac legitimus Christi vicarius: non igitur cuiquā fides Catholica necessitatem imponit illum credendi esse verum Pontificem.	The subtle opiners add: And yet the Catholic faith imposes upon no one the necessity of believing that the Roman Pontiff has been baptized: but without baptism he cannot be the true and legitimate vicar of Christ: therefore the Catholic faith does not impose upon anyone the necessity of

<i>Latin</i>	<i>English</i>
	believing that he is the true Pontiff.
Verùm conuersione eliditur argumentum: quia enim fide Catholica fateri cogimur esse verum & legitimum Christi vicarium in Ecclesia Catholica, ob tam multas allatas rationes, necessaria iam cõsecutio cogit eum esse baptizatum, esse orthodoxum, esse marem: atque id omne esse sine quo potestas Pontificia consistere nequit.	But the argument is shattered by conversion: for since by the Catholic faith we are compelled to confess that there is a true and legitimate vicar of Christ in the Catholic Church, on account of the so many reasons adduced, a necessary consequence now compels the conclusion that he is baptized, that he is orthodox, that he is a male: and that he is all that without which the Pontifical power cannot stand.
5. Est enim id prouidentia diuinæ non fallentis Ecclesiam, vt suus vicarius, quem suo pascendo gregi vult esse præpositum, nulla re careat, quam potestas tâta, quam gerit, & munus, quod exequi debet, necessariò exposcit: at exposcit, vt sit vir, nec fidei, nec baptismi, nec rationis expers: virum igitur illum, & fidelem, & baptizatum credi oportet necessariò: necessitate	5. For it belongs to the divine providence, which does not deceive the Church, that His vicar, whom He wills to be set over His flock to feed it, should lack nothing which the so great power that he bears, and the office that he must execute, necessarily demand: but it demands that he be a man, devoid neither of faith, nor

<i>Latin</i>	<i>English</i>
inquam cōsequentiae, & diuinæ prouidentiae, Ecclesiae suæ consulentis.	of baptism, nor of reason: therefore it must necessarily be believed that he is a man, and faithful, and baptized: by a necessity, I say, of consequence, and of the divine providence taking counsel for His Church.
Et quemadmodum sanctissimorū Pontificum, Lini, Leonis, Gregorij fidem Catholicam, & baptismum in dubium reuocare esset hominis impij: sic à piis mentibus abhorret in quouis alio Pontifice, qui gubernat eamdē Christi Ecclesiam, isthæc ipsa in controuersiam vocare.	And just as to call into doubt the Catholic faith and the baptism of the most holy Pontiffs, Linus, Leo, Gregory, would be the part of an impious man: so it is abhorrent to pious minds to call these same things into controversy in any other Pontiff whatsoever who governs the same Church of Christ.
Neque illud ab aduersariis præteriri solet, quòd cùm Romani Pontificis electionem nonnulla commaculent, & vitient, in quibus præcipua est simoniæ labes ex constitutione, quæ incipit, cùm tam diuino quàm humano iure, orbi Christiano promulgata 1505. die 18. Ianuarij, vbi statuitur, simoniacam Romani Pontificis electionem esse nullam, nec vllo vmquā tempore posse	Nor is this wont to be passed over by the adversaries: that, since certain things stain and vitate the election of the Roman Pontiff — among which the chief is the blot of simony, according to the constitution which begins, cùm tam diuino quàm humano iure, promulgated to

<i>Latin</i>	<i>English</i>
conualescere: quam constitutionem. Pius IV. confirmavit alia sua, cuius est initium: in eligendis Ecclesiarum Prælati consequens esse, ut quantum periculi inest in maximorum Pontificum electionibus, tantumdem insit dubitationis in eorum, qui eliguntur potestate.	the Christian world in 1505, on the 18th day of January, where it is established that a simoniacal election of the Roman Pontiff is null, and can never at any time acquire validity — which constitution Pius IV confirmed by another of his own, whose beginning is: in eligendis Ecclesiarum Prælati — it is consequent that, as much danger as is present in the elections of the Supreme Pontiffs, just so much doubt is present in the power of those who are elected.
Respondeo, Deum, qui præcipua quadam providentia electioni sui vicarij præest, atque eligentium studiis ac suffragiis moderatur, aut non passurum, ut eiusmodi vitia in electionem incidant; aut si inciderint, ea statim detecturum: ut ne suos Ecclesiæ legitimus sponsus, parens, rectorque desit. Quæ verò ab humana historia suapte natura captiosa, fallacique arcessuntur, ad hanc, quam ipsi tuemur veritatem conuellendam haud magno aestimanda sunt. Romanum	I respond that God, who by a certain special providence presides over the election of His vicar, and governs the inclinations and votes of the electors, either will not suffer vices of this kind to fall upon the election; or, if they should fall upon it, will straightway uncover them: lest her own legitimate spouse, parent, and ruler be

<i>Latin</i>	<i>English</i>
autem Episcopum, diuina institutione fuisse & futurum esse Petri successorem, in cura & rectione vniuersalis Ecclesiæ. Turrecremata, Driedo, Canus, & docere & persuadere conati sunt; legito Turrecrematam, lib.2. de Ecclesia in multis capitibus. Driedonem lib.4. de variis dogmat. c.4. par.3. Canum lib.6. de locis Theologicis, cap.4.5.6. Ab hoc enim postremo disceptatore tam multa sunt collecta testimonia Patrum sanctorumque Pontificum Romanorum, ut vel curiosissimi cuiusque animi expleuerit cupiditatem.	lacking to the Church. But the things which are summoned from human history — of its own nature captious and fallacious — for the overthrowing of this truth which we ourselves defend, are to be esteemed at no great worth. Moreover, that the Roman Bishop, by divine institution, has been and will be the successor of Peter in the care and ruling of the universal Church, Turrecremata, Driedo, and Cano have endeavored both to teach and to persuade; read Turrecremata, lib.2. de Ecclesia, in many chapters; Driedo, lib.4. de variis dogmat. c.4. par.3.; Cano, lib.6. de locis Theologicis, cap.4.5.6. For by this last disputant so many testimonies of the Fathers and of the holy Roman Pontiffs have been collected, that he will have satisfied the desire of even the most inquisitive mind.

<i>Latin</i>	<i>English</i>
Neque ignorare fas est, quæ mira religione & fide à diuo Thoma pro Romano Pontifice in opusculo de erroribus Græcorum scripta sunt, in eo præsertim capite, cuius hæc sunt prima, atque hæc prima sententia. Similis autem error est, dicentium, Christi vicarium Romanę Ecclesiæ Pontificem non habere vniuersalis Ecclesiæ primatū; errori dicentium, Spiritum sanctum à filio non procedere: ipse enim Christus Dei filius suam Ecclesiam consecrat, & sibi consignat Spiritu sancto quasi suo caractere, & sigillo, vt ex suprà positis auctoritatibus manifestè habetur: & similiter Christi vicarius, suo primatu & prouidentia vniuersam Ecclesiam tamquam fidelis minister Christo subiectam conseruat.	Nor is it right to be ignorant of the things which, with wondrous religion and faith, were written by St. Thomas on behalf of the Roman Pontiff in the opusculum de erroribus Græcorum, especially in that chapter of which these are the first words, and this the first sentence. Moreover, the error of those who say that the vicar of Christ, the Pontiff of the Roman Church, does not have the primacy of the universal Church, is similar to the error of those who say that the Holy Spirit does not proceed from the Son: for Christ Himself, the Son of God, consecrates His Church, and seals it to Himself by the Holy Spirit as by His own character and seal, as is manifestly had from the authorities set down above: and in like manner the vicar of Christ, by his primacy and providence, as a faithful minister, preserves

<i>Latin</i>	<i>English</i>
	the universal Church subject to Christ.